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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S SUPPLEMENTAL
MEMORANDUM OPPOSING
MOTION TO CLASSIFY
DEFENDANT'S MOTION FILED
JANUARY 9, 2026**

(Filed Under Seal)

(Hearing Scheduled)

Case No. 251403576

Hon. Tony F. Graf, Jr.

The *Deseret News*, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL

(Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network (all collectively, **News Media**) hereby oppose Defendant's Motion to Classify Defendant's Motion filed January 9, 2026 (Motion to Classify) (Dkt. 285).

The News Media and the State previously opposed the Motion to Classify. (Dkts. 302, 337, 340.) But the News Media was unable to thoroughly address the merits because defense counsel refused to provide the underlying motion to counsel for the News Media, even on an attorneys' eyes only basis. Now that the Court has ordered defense counsel to provide AEO access, the News Media submits this supplemental opposition.¹

The law regarding public access to court filings has already been covered at length (*see* Dkts. 302, 337), so the News Media will not belabor the point. But as a brief reminder, court filings are presumptively public, and both the U.S. Supreme Court and the Utah Supreme Court have recognized the public's right of access to criminal proceedings, including pretrial filings. *See* Utah Code Jud. Admin. R. 4-202.02(1), (2)(f); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555 (1980) ("From this unbroken, uncontradicted history, supported by reasons as valid today as in centuries past, we are bound to conclude that a presumption of openness inheres in the very nature of a criminal trial under our system of justice. This conclusion is hardly novel...."); *Press-Enterprise Co. v. Superior Ct. of Cal. for Riverside Cnty.*, 478 U.S. 1, 7 (1986) (applying the right of public access to preliminary hearings because the right does not depend "on the label we give the event, *i.e.*, 'trial' or otherwise"); *State v. Archuleta*, 857 P.2d 234, 237–

¹ Pursuant to the Court's Rulings and Orders dated February 23, 2026, the News Media have filed this Supplemental Opposition under seal on a provisional basis only. However, the Court should order the public release of this and any other sealed filings relating to the Motion to Classify for the same reasons that the underlying evidentiary motion should be made public.

41 (Utah 1993) (recognizing a “presumptive right of access to documents filed in connection with a criminal preliminary hearing” that is protected by the U.S. Constitution and the Utah Constitution and that was recognized at common law).

Defense counsel tries to overcome the public’s right of access by arguing that the underlying motion “addresses evidence that has not yet been found to be admissible and is of a nature that it could easily taint potential jurors.” (Dkt. 285.) This argument fails for two reasons.

First, as the News Media has briefed at length, public access cannot be denied merely because evidence may later be ruled inadmissible. (Dkts. 302, 337.) As the State put it, “[T]he mere fact that a court has not ruled on the admissibility of certain evidence cannot be a sufficient basis for restricting access to a record discussing that evidence. If it were, then most pre-trial filings discussing evidence would be presumptively protected. But rule 4-202.01(1) plainly establishes the opposite presumption.” (Dkt. 340 at 2.) Moreover, the underlying motion does not even argue that the evidence it discusses is inadmissible—it merely seeks an order prohibiting further testing of the evidence and permitting a defense expert access to the evidence.

Second, the underlying motion and the evidence it discusses belie any argument that public access would “lead to bias and tainting of the jury pool.” (Dkt. 378.) The underlying motion discusses and attaches a four-page ATF report on a comparison between a bullet jacket fragment recovered during an autopsy of Charlie Kirk and a rifle recovered by law enforcement. “The result of the comparison was inconclusive.” (See Dkt. 284, Ex. 2.) Defense counsel does not explain how this evidence could taint or bias the jury pool. Instead, the defense argues the evidence is *exculpatory*:

The bullet jacket fragment evidence in this case is material exculpatory evidence within the meaning of *Trombetta*, and not merely “potentially useful evidence”

within the meaning of *Youngblood* because here the ATF examination has already revealed that “firearms” (not just rifles) that produce general rifling characteristics similar to those observed on the Exhibit 6A bullet jacket fragment “include numerous makes and models,” and that an examination of individual characteristics did not reveal incriminating evidence. The evidence thus possesses an apparent exculpatory value within the meaning of *Trombetta*.

(Dkt. 284 at 6–7; *see also id.* at 12 (arguing the “FBI is clearly on notice of the exculpatory ATF testing results”).) The defense’s statement that testing “did not reveal incriminating evidence” demonstrates that the underlying motion should not be litigated in secret and that this case is inapposite from those where courts denied public access. *See, e.g., Archuleta*, 857 P.2d at 236 (denying access to documents discussing a “homicide [that] was committed in a particularly depraved manner, consisting of physical torture, anal object rape, and massive bodily injury to the victim prior to death”).

For these reasons, in addition to those previously argued, the defense has not overcome the presumption favoring public access, and the Motion to Classify should be denied.

RESPECTFULLY SUBMITTED this 10th day of March 2026.

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